

# FEDERAL MARITIME COMMISSION

## Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

CMA CGM S.A., *Respondent*.

**DOCKET NO. 25-25**

Served: November 14, 2025

---

**ORDER OF:** Erin M. WIRTH, *Chief Administrative Law Judge*.

---

### SCHEDULING ORDER

On November 13, 2025, the Commission received the joint status report and proposed discovery schedule (“JSR”) filed by the parties on October 14, 2025. The parties state that they have already exchanged initial disclosures and exchanged a draft of a Protocol Regarding Electronically Stored Information. JSR at 1. The parties indicate that they emailed CADRS and will hold a preliminary conference with CADRS once the lapse in funding ends.

The parties assert that “where (1) discovery stems from a universe of millions of documents from both Parties, (2) significant third-party discovery is necessary, and (3) the Parties anticipate needing multiple depositions of current/former party employees and third-party persons, discovery cannot be reasonably completed within the Commission’s prescribed 150-day period.” JSR at 2-3. Providing the parties with an appropriate timeframe for discovery in this particularly complex proceeding will allow them to schedule witnesses and it is anticipated that additional extensions will not be required. Therefore, the parties have provided good cause to extend the 150-day discovery period. The proposed discovery schedule is reasonable and adopted.

The parties are hereby **ORDERED** to follow this schedule:

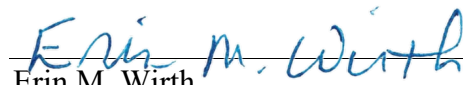
- |                   |                                                                                                                                                  |
|-------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| December 5, 2025  | Serve objections and initial responses to initial RFPs.                                                                                          |
| December 5, 2025  | Serve objections and initial responses to initial interrogatories.                                                                               |
| December 19, 2025 | Submit any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly). |
| March 12, 2026    | Confirm substantial completion of production of documents and ESI in response to initial RFPs, including third-party discovery.                  |
| April 1, 2026     | File Joint Status Report.                                                                                                                        |

|                    |                                                                                                                 |
|--------------------|-----------------------------------------------------------------------------------------------------------------|
| April 21, 2026     | Complete depositions of fact witnesses.                                                                         |
| April 21, 2026     | Serve final interrogatories, requests for admission, and RFPs.                                                  |
| May 21, 2026       | Disclose initial expert reports, if any.                                                                        |
| June 22, 2026      | Disclose rebuttal expert reports, if any.                                                                       |
| July 10, 2026      | Complete expert depositions.                                                                                    |
| July 10, 2026      | Close of discovery.                                                                                             |
| August 11, 2026    | Complainant's initial brief, proposed findings of fact, and appendix.                                           |
| September 25, 2026 | Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix. |
| October 16, 2026   | Complainant's reply and responses to proposed findings of fact.                                                 |

Motions and settlement discussions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The Initial Order addresses common issues with filings. All parties are required to read it carefully and follow all requirements or their filing may be rejected.

  
 Erin M. Wirth  
 Chief Administrative Law Judge